Marshall & Dominguez LLP

Pearland, TX
Phone 281-555-1704

Settlement Demand

November 18, 2024

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1244 - Demand for settlement

Dear Claims Representative:

Our office represents Megan Martin in connection with the motor vehicle collision that occurred on September 4, 2024. Our client was lawfully traveling in the right-hand lane when your insured changed lanes without signaling or checking the blind spot, striking the driver's side of our client's vehicle and forcing it toward the shoulder. The police report documents the lane change and identifies your insured as the party who failed to yield the right of way.

As a direct result of the impact, our client suffered a whiplash injury to the neck and upper back. Following the collision, our client was evaluated at the emergency department and has since attended ongoing physical therapy and chiropractic care. Our client continues to experience neck stiffness, headaches, and restricted range of motion, and has missed time from work while recovering.

Liability in this matter is clear, and your insured's neglgience is the proximate cause of our client's injuries and resulting losses. Accordingly, we demand payment of $236,000.00 to resolve all claims arising from this incident. This offer will remain open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we will file suit without further notice and seek all available damages.

Expert review: Matthew Moore, biomechanical engineer

Sincerely,

Kyle Sanders
Marshall & Dominguez LLP